
Operational Policy

Policy title:	eDiscovery Program Policy		
Policy number:	ODHSOHA 090-019		
Original date:	11/01/2024	Last update:	11/01/2024
Approved:	Kris Kautz, OHA Seth Lyon, ODHS		

Purpose

The Oregon Department of Human Services (ODHS) and the Oregon Health Authority (OHA) are committed to the legal preservation and the exchange of data facilitated through the eDiscovery program. This policy supports agency requests by authorized requestors for electronically stored information produced for internal and external investigations, public record requests, and pending litigation.

Description

This policy outlines the requirements for identifying, collecting, preserving, and producing electronically stored information.

Applicability

This policy applies to all ODHS and OHA staff including employees, volunteers, trainees, and interns as well as partners and contractors.

As keepers of the public trust, all employees have a responsibility to comply with state and agency policies, administrative rule, and state and federal law. The agency takes this responsibility seriously and failure to fulfill this responsibility is not treated lightly. Employees who fail to comply with state or agency policy, administrative rule, or state and federal law may face progressive discipline, up to and including dismissal from state service.

Policy

1. The eDiscovery coordinator shall comply with federal and state laws related to the protection and preservation of electronically stored information.
2. The eDiscovery coordinator shall manage and fulfill eDiscovery requests made for the purpose of internal and external investigations, public record requests, and pending litigation.
3. The eDiscovery coordinator shall:
 - a. Complete the request within ten business days.
 - b. Notify the authorized requestor within five business days if the timeline requires more than 10 business days for completion.
4. The eDiscovery coordinator shall provide data only to requestors who have been authorized and granted access. The method for becoming an authorized requestor is outlined in the ODHSOHA 090-019-01 eDiscovery Program Process.
5. Authorized requestors shall receive, preserve, and deliver agency data provided by the eDiscovery coordinator subject to agency retention requirements.
6. Authorized requestors have up to 45 days to move the requested information from the ISPO-managed eDiscovery folders to their own secure folder or secure location.
 - a. After 45 days, the eDiscovery staff shall delete the exported records from ISPO-managed eDiscovery folders.
 - b. Files requiring a longer retention period shall be moved from the ISPO-managed eDiscovery folders by the authorized requestor to their own secure folder or secure location.
 - c. Moved files shall be subject to the retention policies and litigation needs of the applicable ODHS or OHA unit.

References

[Acceptable Risk Controls for Affordable Care Act for Medicaid Partner Exchanges](#)

[Federal Rules of Civil Procedure Rule 26 Duty to Disclose; General Provisions Governing Discovery](#)

[Oregon Rules of Civil Procedure Rule 36 General Provisions Governing Discovery](#)

[Oregon Revised Statutes \(ORS\) 192 Records; Public Reports and Meetings](#)

ODHSOHA 090-019-01 eDiscovery Program Process

ODHSOHA 090-019-02 eDiscovery Program Process Map

Related policies

[DAS 107-004-100 Acceptable Use of State Information Assets Policy](#)

[ODHSOHA 010-018 Record Retention and Management Policy](#)

Contact

Information Security and Privacy Office (ISPO), eDiscovery

dhs-oha.ediscoveryrequests@odhsoha.oregon.gov

This policy shall be reviewed at least once every year to ensure relevance.

Policy history

Version 1 ODHS 090-019 established 11/01/2024

Keywords

Authorized, eDiscovery, discovery, litigation, preserving, producing

This document can be provided upon request in an alternate format for individuals with disabilities or in a language other than English for people with limited English skills. To request this document in another format or language, contact the Publications and Design Section at 503-378-3486, 7-1-1 for TTY, or email dhs-oha.publicationrequest@odhsoha.oregon.gov